

Smt. Mithilesh Gupta v. Consumer Grievances Redressal Forum At Commissioner & Ors

High Court of Judicature at Allahabad · Division Bench · 28 January 2014 · Writ-C No. 5373 of 2014 · **Writ disposed; petitioner relegated to Clause 6.5**

HEADNOTE

A writ challenging an electricity demand on the ground of an erroneously operating meter was disposed of without deciding the dispute. The consumer was left to Clause 6.5 of the U.P. Electricity Supply Code, 2005. Respondent no. 2 was directed to examine the complaint and pass an appropriate order in accordance with law within two months of production of a certified copy.

FACTUAL SUMMARY

Smt. Mithilesh Gupta petitioned the Allahabad High Court disputing an electricity demand, alleging that her meter was operating erroneously and that incorrect bills were being raised. The Consumer Grievances Redressal Forum at the Commissionerate and others were respondents. Counsel for the electricity department submitted that Clause 6.5 of the U.P. Electricity Supply Code, 2005 afforded a remedy before the competent authority. The Court did not examine the meter or the bills on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing and meter-accuracy dispute — Clause 6.5 remedy

HOLDING

Where a consumer disputes the correctness of an electricity demand on the ground that the meter is operating erroneously, Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the available forum for redressal. The writ petition is disposed of with liberty to approach the competent authority (respondent no. 2), who shall examine the complaint and pass an appropriate order in accordance with law. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging an electricity demand on the ground of an erroneously operating meter was disposed of without deciding the dispute. The consumer was left to Clause 6.5 of the U.P. Electricity Supply Code, 2005. Respondent no.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER WAS OPERATING ERRONEOUSLY AND WHETHER THE DEMAND WAS INCORRECT

Left to respondent no. 2 to examine the complaint and pass an appropriate order in accordance with law. ¶ 1